

In T 1173/97 the board stated that although TRIPS may not be applied directly to the EPC, the board found it appropriate to take it into consideration, since it is aimed at setting common standards and principles concerning the availability, scope and use of trade-related intellectual property rights, and therefore of patent rights. Thus TRIPS gives a clear indication of current trends.

In G 2/02 and G 3/02 the Enlarged Board of Appeal noted that TRIPS provisions, like decisions of the European and International Courts of Justice and national decisions, are elements to be taken into consideration by the boards of appeal but are not binding on them. Whereas it is legitimate for the boards of appeal to use the TRIPS Agreement as a means to interpret provisions of the EPC 1973 which allow different interpretations, specific provisions of TRIPS cannot justify ignoring express and unambiguous provisions of the EPC 1973. To do so would usurp the role of the legislator. This was confirmed by the fact that the legislator of EPC 2000 found it necessary to revise Art. 87 EPC 1973 in order to implement the TRIPS Agreement. The law to be applied by the boards of appeal was governed by the provisions of the EPC only.

In T 1173/97 (OJ 1999, 609) the board decided that, although TRIPS could not be applied directly to the EPC 1973, it was appropriate to take it into consideration in connection with the patentability of computer program products, for TRIPS was aimed at setting common standards and principles concerning the availability, scope and use of trade-related intellectual property rights. It thus gave a clear indication of current trends. The appellant's reference to current practice at the US and Japanese patent offices caused the board to emphasise that the situation under these two legal systems (US, JP) differed greatly from that under the EPC 1973; only the EPC 1973 contained an exclusion such as that in Art. 52(2) and (3) EPC 1973. These developments nevertheless represented a useful indication of modern trends and, in the board's view, could contribute to the highly desirable further (worldwide) harmonisation of patent law.

3. The European Convention on Human Rights

In R 19/12 of 25 April 2014 the Enlarged Board of Appeal observed that Article 6 ECHR had been recognised in G 1/05 (OJ 2007, 362) and G 2/08 of 15 June 2009 as a binding standard for proceedings before the boards of appeal because it relied on principles of law common to all member states of the European Patent Organisation and applying to all its departments (see also D 11/91 of 14 September 1994 and chapter III.J.1.3. "The European Convention on Human Rights"). That justified applying both national case law and that of the European Court of Human Rights as a supplementary means of interpreting the EPC.

The board in T 1243/17 stated that the boards of appeal had deemed Art. 6(1) ECHR relevant for decisions taken under the EPC (particularly in the context of Art. 125 EPC) as a yardstick for the procedural law principles that are generally recognised in the contracting states (see T 261/88, OJ 1992, 627; G 1/05, OJ 2007, 362; G 2/08). Therefore, when Art. 6(1) ECHR was applied in EPO proceedings, it had to be interpreted by the EPO and its boards of appeal. Specifically, they had to decide whether or not the "reasonable time" stipulated in Art. 6(1) ECHR had been adhered to. The board analysed the case law of the

European Court of Human Rights. It was not convinced that that case law was sufficient to demonstrate that the length of examination proceedings before the EPO could be systematically taken into account when assessing the reasonable time. Nonetheless, the board stated that the principles developed by the Court regarding the length of the proceedings provided a useful framework for assessing the length of proceedings. In the case in hand, the appellant had not formulated any specific claim in relation to the alleged violation of Art. 6(1) ECHR. See also the similar case T 2805/19.

In T 1787/16, the board observed that Art. 125 EPC stipulated that in the absence of any procedural provisions in the EPC, the principles of procedural law generally recognised in the contracting states to the European Patent Organisation were to be taken into account. This applied in particular to the legal principle of a right to a fair trial, as laid down for instance in Art. 6(1) ECHR, which was a general yardstick for shaping proceedings. It also included the requirement to word the decision so that it could be understood by any party with a command of the language of the proceedings.

In T 844/18 the appellant alleged that the established EPO interpretation interfered with the owners' right of peaceful enjoyment of their possessions. Moreover, it could even result in the loss of another property right, namely the patent, due to novelty-destroying intervening prior art. The board, considering the appellant's argument to be circular, did not explicitly address the alleged violation of Art. 1 of Protocol No. 1 to the ECHR (point 51 of the Reasons).

4. Impact of national decisions on the case law of the boards of appeal

As previously mentioned, decisions and opinions handed down by national courts on interpreting the law can also be taken into account (G 2/12, G 2/13, G 3/19).

4.1. The duty of the boards of appeal to interpret and apply the EPC

In G 2/02 and G 3/02 (OJ 2004, 483) the Enlarged Board of Appeal recognised that, in accordance with the aim of the EPC, as expressed in its preamble, to strengthen co-operation between the States of Europe in respect of the protection of inventions, there has always been the intention to harmonise the substantive patent law to be applied in the contracting states and in the EPO.

In G 5/83 the Enlarged Board of Appeal stated that in the interpretation of international treaties which provide the legal basis for the rights and duties of individuals and corporate bodies it is, of course, necessary to pay attention to questions of harmonisation of national and international rules of law. This aspect of interpretation, not dealt with by the provisions of the Vienna Convention, is particularly important where, as is the case with European patent law, provisions of an international treaty have been taken over into national legislation. The establishment of harmonised patent legislation in the contracting states must necessarily be accompanied by harmonised interpretation. For this reason, it is incumbent upon the European Patent Office, and particularly its boards of appeal, to take into consideration the decisions and expressions of opinion of courts and industrial property offices in the contracting states.

In **T 154/04** (OJ 2008, 46) the board stated that in the proceedings before the European Patent Office, such considerations do not exonerate a board of appeal from its duty as an independent judicial body to interpret and apply the EPC and to decide in the last instance in patent granting matters. In addition, despite harmonised legal regulations it is not self-evident that their interpretation is also harmonised among different national courts, let alone courts of different contracting states, so that the boards of appeal would be at a loss as to which interpretation to follow if they did not exercise their own independent judgment.

In **J 14/19**, the Legal Board observed that R 14(1) EPC did not specify when national proceedings were deemed to have been instituted. Nor was it independently defined anywhere else in the EPC when national court proceedings became pending. The issue of when they became pending was therefore to be assessed under the procedural law of the country whose courts had been asked to take a decision within the meaning of Art. 61(1) EPC (see **J 7/00**, **J 2/14**; see also **T 1138/11**). Art. 8 of the Protocol on Recognition supported this interpretation. In the interests of a **uniform European standard of interpretation**, recourse could be had to the case law of the Court of Justice of the European Union on Art. 21 of the Brussels Convention (which both matched Art. 8 of the Protocol on Recognition in content and preceded it). In the context of that provision too, when proceedings were deemed to be pending was to be assessed for each court in line with its own national procedural law (ECJ, Case 129/83).

4.2. Effects on the case law due to the differences between national legislation and the EPC

In **J 9/07** the board stated that according to Art. 1 EPC 1973 the EPC established a system of law common to the contracting states for the grant of patents for inventions. This common system of law is applicable to all European patent applications irrespective of which contracting states have been designated in the European patent application. Although in general a high degree of harmonization between the EPC and national laws is desirable and has indeed been achieved, differences between national legislation and the EPC are not ruled out by Art. 2(2) EPC 1973 or Art. 66 EPC 1973 in this regard. The board stated that, save to the extent that the Convention expressly provides otherwise, the EPO is not allowed to take into consideration with respect to the designated state concerned a specific national legal provision which would be more favourable for the applicant than the provisions of the EPC. This is because this would have the consequence of giving European applications unequal treatment as regards the requirements for grant depending on which state or states have been designated, contrary to Art. 1 EPC 1973. It would also go against the principle of the unity of the application enshrined in Art. 118 EPC 1973 since, if a more favourable national provision were to be applied in relation to the designated state concerned, distinguishing between a case in which the designated state concerned is the only one designated and a case in which further states have been designated as well would appear arbitrary and unjustifiable.

As regard Art. 31(3)(a) to (b) Vienna Convention, legislative and administrative developments in a quarter of the contracting states did not amount to a subsequent agreement or practice (**G 3/19**).

4.3. National decisions: no binding effect on the boards of appeal

In decision T 452/91 it was held that in proceedings before the instances of the EPO, questions of patentability were to be decided solely in accordance with the EPC. No national decision should be cited as if it were binding on the EPO, and claims should not be refused by the EPO on the ground that their "patentability cannot be upheld under the jurisdiction of one member state". It could be that the law in most or all other contracting states was different. The reasoning that led the national instance to its conclusion might well lead an EPO instance to a similar conclusion under the EPC, but this would first need a careful assessment of the EPC, and of relevant EPO board of appeal case law, a comparison with the legislation and jurisprudence on which the national instance reached its conclusion, and a study of the position in other contracting states (R 21/09, T 1753/06).

In G 1/19 (Pedestrian simulation), the Enlarged Board observed that in the course of the referral proceedings, reference was made to certain national decisions (from Germany and UK). However, as the referred questions were only understood in the framework of the COMVIK approach, which was specifically established in the case law of the boards of appeal and on which the national decisions are not based, the Enlarged Board did not consider it appropriate to address them in detail.

5. Decisions of the Administrative Council: boards of appeal not formally bound

In J 16/96 (OJ 1998, 347) the issue was whether an association of representatives within the meaning of R 101(9) EPC 1973 could also be formed by professional representatives who did not work in private practice. The Administrative Council of the European Patent Organisation had decided at its 4th meeting in 1978 that an association within the meaning of this rule could only be an association consisting of professional representatives in private practice. The Legal Board of Appeal pointed out that in their decisions the boards of appeal were not bound by any instructions and complied only with the provisions of the EPC 1973 (Art. 23(3) EPC 1973). The boards of appeal could not be formally bound by a decision of the Administrative Council concerning a question of interpretation, nor could such a decision be deemed to be an instruction for their decisions. However, such a decision was a relevant element in interpretation. Interpreting the case in accordance with Art. 31(1) of the Vienna Convention, the board concluded that an association within the meaning of R 101(9) EPC 1973 could also be an association of representatives not engaged in private practice. The intended aim of the Council's decision, which was to eliminate ambiguities in the application of R 101(9) EPC 1973, had, in the light of recent developments in the profession, not been achieved, and as such the decision was less important in relation to the other factors involved in interpretation.

In G 3/19 the Enlarged Board concluded that, in view of the clear legislative intent of the contracting states as represented in the Administrative Council and having regard to Art. 31(4) Vienna Convention, the introduction of R 28(2) EPC allowed and indeed called for a dynamic interpretation of Art. 53(b) EPC. In the referral decision (T 1063/18), the board had held that, although the Administrative Council was competent to amend the

Implementing Regulations pursuant to Art. 33(1)(c) EPC, this competence did not extend to amending an Article of the Convention, here Art. 53(b) EPC.

6. Implementing Regulations

In T 39/93 (OJ 1997, 134) the board held that, in view of Art. 164(2) EPC 1973, the meaning of an Article of the EPC on its true interpretation as established by a ruling of the Enlarged Board of Appeal could not, in the board's view, be overturned by a newly drafted Rule of the Implementing Regulations, the effect of which would be to conflict with this interpretation. This is because, according to Art. 164(2) EPC 1973, in the case of conflict between the provisions of this Convention (the EPC Article) and those of the Implementing Regulations, the provisions of this Convention shall prevail (see also T 885/93; T 83/05, OJ 2007, 644; G 2/07, OJ 2012, 130).

In T 991/04 of 22 November 2005 the board stated that the Munich Diplomatic Conference (1973) as the legislator of the European patent system drafted the first versions of the EPC 1973 and the Implementing Rules as a legal unity which should be read in a consistent way. In this regard the Implementing Regulations had the function of an **authentic interpretation** of the EPC 1973.

In G 2/07 (OJ 2012, 130) the Enlarged Board of Appeal noted that the provisions of the Biotech Directive 98/44/EC, which were not yet contained in the Convention and related to substantive patentability requirements, were incorporated in the interest of uniformity in harmonised European patent law into the Implementing Regulations as they stood (see the notice dated 1 July 1999 concerning the amendment of the Implementing Regulations to the EPC (OJ 1999, 573, point 19 of the Reasons, explanatory notes to R. 23b(5) EPC 1973)). The referring board (cf. T 83/05, OJ 2007, 644) had argued that the competence of the Administrative Council to amend the Implementing Regulations according to Art. 33(1)(b) EPC did not extend to core issues of substantive patent law, so that the introduction of provisions determining the boundaries of patentable subject-matter was ultra vires. Decisions J 11/91 and J 16/91 (OJ 1994, 28, point 2.3.4 of the Reasons) of the Legal Board of Appeal, cited in the referring decision, contained a sentence stating that the Regulations may deal only with procedural questions and not with matters of substantive law. No reason was given in these decisions as to why this should be so.

The Enlarged Board of Appeal in G 2/07 stated that it is the function of the Implementing Regulations to determine in more detail how the Articles should be applied and there is nothing in the Convention allowing the conclusion that this would not also apply in the case of Articles governing issues of substantive patent law. The limits to the Administrative Council's law-making powers by means of the Implementing Regulations could be inferred from Art. 164(2) EPC. According to that Article, in case of conflict between the provisions of the Convention and those of the Implementing Regulations, the provisions of the Convention shall prevail. In decision G 2/93 (OJ 1995, 275), the Enlarged Board of Appeal accepted that R. 28 EPC 1973 implemented Art. 83 EPC 1973 and was, at least in part, substantive in nature. Furthermore, in its more recent decision G 2/06 (OJ 2009, 306, points 12 and 13 of the Reasons), too, the Enlarged Board did not doubt the Administrative